

IN THE PROCURMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCURMENT REGULATORY AUTHORITY

PRC Appeal No. 02/2025

M/S Abdul Malik & Brothers

.... APPELLANT

Versus

- 1. The Secretary, Local Government of Baluchistan***
- 2. The Senior Development Officer Local Government & Rural Development Department (LG&RD)***
- 3. The Chairman CRC Committee Local Government Department***
- 4. M/S Malik Abdul Ghaffar & Brothers***

.... RESPONDENTS

Quorum:

1. Mr. Muhammad AfzalChairman PRC
2. Mr. Mubashir Ali Khan (FCIPS).....Member PRC
3. Engr. Junaid Shah.....Member PRC
4. Engr. Muhammad Ayub NasirTechnical Member PRC
5. Abdul Wahab Buledi, Advocate.....Private Member PRC

APPEAL UNDER RULE 56-A OF BALUCHISTAN PUBLIC PROCUREMENT RULES 2014 AGAINST
TSE No: 242504686513

For the Appellant:

Mr. Abdul Hakeem Zareen, Advocate

For the Respondents:

Mr. Abdul Hakeem Kakar, Advocate

Muhammad Aslam, Deputy Director, LG&RD

Muhammad Danish, APS, LG&RD

Date of Final hearing: 30-06-2025

Decided on: 02-07-2025

PRC Appeal No. 02/2025

TSE-242504686513

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DECISION

Mubashir Ali Khan (FCIPS) – Member PRC. The Appellant, by leave of this Committee has challenged the impugned act of assigning lower marks to the Appellant during the technical evaluation of bids by the Respondent.

2. Brief facts of the case are that the Appellant in capacity of a bidder participated in the electronic Tender titled "Solarization of existing and new tube wells in PB-44 Quetta-VII" advertised under PRQ No. 4062/21-04-2025 and TSE No. 242504686513 on the BPPRA ePPS by the Respondent, adopting single stage – two envelope bidding procedure. Wherein, the evaluation criteria were set to be the least cost selection method, with the threshold of securing 75% marks, by the eligible bidders for being considered technically responsive and subsequently considered for financial evaluation. The technical and financial bids were opened on 8th and 14th of May 2025 respectively and the Contract has been awarded to M/S. Malik Abdul Ghaffar & Brothers on the 16th of May 2025 by the Respondent 2.

3. The Appellant claims his technical bid, to have been incorrectly evaluated by the statutory Procurement Committee (PC) thereby depriving him from his lawful act of being awarded the said Contract notwithstanding his claimed compliance with requirements of the criteria set forth by the Respondent. Aggrieved thereby, the Appellant filed a Grievance Ref. No. 672-76 dated: 15th May 2025 before the statutory Complaint Redressal Committee (CRC) of the Respondent, pursuant to Rule 56 of the Balochistan Public Procurement Rules 2014 (BPPR). While no final determination has yet been rendered by the CRC in accordance with Rule 56(3) of the said Rules, it is on record that, vide letters Ref. Nos. 303-6 and 315-18 dated 30th May 2025, the CRC requisitioned "original" documents and substantiating evidence from the Appellant in support of the allegations made in the subject grievance. The Appellant, having taken exception to the requirement of submitting hard-copy documents in the context of a fully electronic procurement process, and further aggrieved by the inordinate delay in adjudication of his grievance, has invoked the jurisdiction of this Committee under Rule 56-A of the BPPR.

4. Learned Counsel for the Appellant, while assailing the awarded 64 out of 100 marks, to his client, M/S. Abdul Malik & Brothers, a Category – 2 PEC registered Contractor, referred to the printouts of Work Orders, Audit Reports and other documents, said to be the attachments of the electronically submitted technical proposal of his client. He pleaded that, had the bids been evaluated in accordance with the evaluation criteria set out in the bidding documents, his client would have been declared technically responsive and considered for financial evaluation. For the establishment of facts, the learned Counsel sought clarity from

the Respondent on the breakdown of marks awarded to his client against each factor of evaluation.

5. It was additionally contended by the learned Counsel that the financial bid submitted by the Appellant was significantly lower than that of the lowest evaluated bidder. The Counsel referred to the evaluation report uploaded on the BPPRA website, wherein the contract was awarded at a value of PKR 195,039,248/-. In contrast, the Appellant's bid was stated to be 17% below the Composite Schedule of Rates (CSR), amounting to PKR 164,431,260/-. It was argued that, had the technical evaluation been conducted in a fair and meritorious manner, the Government would have benefitted from substantial fiscal savings offered by his client.

6. That Notices were issued to the respondents on 18th June 2025 and this Committee directed the CRC to decide the fate of the complaint and communicate its decision to both the Appellant and BPPRA. Accordingly, the matter was adjourned for 23rd June 2025. On the said date, the respondents were directed to file their reply and to depute well-conversant officer along with complete procurement record of the instant electronic Tender including all attachments. The matter was then adjourned to 25th June 2025.

7. On 25th June 2025, a reply was submitted on behalf of Respondent No. 2, and the learned Counsel for the Respondent placed on record the Work Order No. 12/SADLG/Qta/Tender Notices/2024-25/176 dated 16th May 2025, under which the contract was awarded to M/S Malik Abdul Ghaffar & Brothers. Thereafter, the learned Counsel for the Appellant, in light of the issuance of the aforementioned work order, prayed for the impleadment of M/S Malik Abdul Ghaffar & Brothers as Respondent No. 4. The request, being found justified, was allowed and M/S Malik Abdul Ghaffar & Brothers were accordingly impleaded as Respondent No. 4 in the main appeal.

8. Respondent No. 2, vide its reply dated 25th June 2025, denied the allegations raised by the Appellant, asserting that the Appellant had failed to fulfill the requisite experience criteria. It was contended that the Appellant had not submitted experience related to exclusively solarization projects, and that projects involving a combination of solarization and bore installation could not be treated as compliant.

9. However, upon examination of the bidding documents, no such restrictive condition limiting acceptable experience to exclusively solarization-related works is found to have been stipulated. On the contrary, the relevant evaluation criterion appears to permit a

broader interpretation of relevant and similar works, consistent with the standard of reasonableness under the applicable rules.

10. It is further observed that the Respondent's interpretation to exclude projects involving solarization combined with other civil works amounts to the imposition of a discriminatory and unnecessarily restrictive condition, which is neither expressly provided for in the bidding documents nor permissible under BPP Rule 37, which prohibits insertion of conditions that may result in discrimination or create undue difficulty for eligible bidders.

11. The Respondent further elaborated upon five sub-factors of the technical evaluation under which the Appellant is stated to have lost marks, resulting in a lower overall technical score:

Factor No.	Evaluation Sub-Factor	Marks lost
1.2.2	Project in hand of similar nature at least 150 million	6
1.2.1	General project showing 150 million	5
1.2.3	Two projects of similar nature at least 150 million	12
1.3.3	Quantity surveyor – electrical engineer	6
1.1.2	Cash flow	15
Total		44

12. The Appellant, through the instant appeal, has contested the impugned deduction of 34 marks, asserting that he was awarded 64 out of 100 marks in the technical evaluation uploaded at BPPRA website. However, it is noted with concern that the Respondent, in its submissions before this Committee, has erroneously and carelessly stated that 44 marks were deducted, implying a total of 56 marks awarded, a figure inconsistent with the official record. This inconsistency reflects a lack of attention and due diligence on the part of the Respondent in a matter as critical as the evaluation of bids in public procurement, where precision and procedural integrity are of paramount importance.

13. The Respondent has further demonstrated a complete lack of understanding of the implications of BPP Rule 40 which explicitly restrains the procuring agency from awarding a contract prior to the lapse of three working days from the date of uploading of the evaluation report at the BPPRA website. Moreover, BPP Rule 56 provides a clear bar on contract award during the pendency of any grievance before the CRC. This prohibition is automatic and does not require any categoric restraining order for it to be effective. The Respondent's failure to observe these mandatory procedural safeguards reflects a serious lapse in the discharge of statutory obligations under the public procurement legal framework.

14. This Committee, vide its order dated 25th June 2025, directed Respondent No. 2 to serve notices upon Respondent No. 4 and to submit a compliance report. Respondent No. 2 was further directed to appear in person on the next date of hearing, 27th June 2025, along with complete record pertaining to Respondent No. 4. However, Respondent No. 2 neither appeared before this Committee nor submitted any report regarding service of notices to Respondent No. 4.

15. A final opportunity was granted to Respondent No. 2 to appear in person on the next date of hearing, i.e., 30th June 2025, yet Respondent No. 2 again failed to comply and neither appeared nor submitted the required service report. Nevertheless, Respondent No. 4 was informed on 27th June 2025 by the Registrar of this Committee to appear in person or through counsel on 30th June 2025. Despite having received the said order via WhatsApp (at his contact number +92 301 8380994), being served with the Order dated 27th June 2025, and also being informed telephonically, Respondent No. 4 remained absent. Consequently, the matter was proceeded Ex-parte against Respondent No. 4.

16. We have heard Mr. Abdul Hakeem Zareen, learned Counsel for the Appellant, and Mr. Abdul Hakeem Kakar, learned Advocate for Respondent No. 2, as well as the representatives of the LG&RD. With the valuable assistance of the Director MIS, we have also undertaken a close examination of the electronic record available at the BPPRA ePPS. The examination was carried out both from the BPPRA Web Portal and by requesting the Appellant to log in to his ePPS dashboard using his system credentials, in order to ascertain the veracity of the documents submitted by him as part of his technical proposal.

17. Examination of ePPS record, carried out by the valuable assistance of the Director MIS, BPPRA reveals that the Respondent has factually deducted the 36 technical marks of the Appellant on following sub-indicators:

Factor No.	Evaluation Sub-Factor	Marks lost
1.2.2	Project in hand of similar nature at least 150 million	6
1.2.3	Two projects of similar nature at least 150 million	24
1.3.3	Quantity surveyor – electrical engineer	6
Total		36

18. Upon perusal of the record through the Appellant's user ID, it was observed that under Factor 1.2.3 "Two projects of similar nature and complexity having a cost of at least PKR 150 million each, completed in the last five years", carrying 24 marks the Appellant had submitted documents pertaining to two projects, one of which, fully satisfies the stated requirement, while the other falls short by a marginal amount of PKR 2 million. Notwithstanding this shortfall, the Appellant was entitled to at least 12 marks under this sub-factor. Similarly,

under Factor 1.3.3, pertaining to the requirement of a "Quantity Surveyor (DAE)" with an allocated weight of 6 marks, the Appellant had annexed CVs of two electrical engineers, yet marks appear to have been awarded against only one. Accordingly, the Appellant was entitled to 6 more marks under this criterion as well.

19. The electronic record establishes that the Appellant was entitled to a technical score of 82, which would have rendered him technically responsive, thereby mandating financial evaluation. The unfair awarded score of 64, was the result of improper bid evaluation by the Procurement Committee. However, the matter also duly came within the jurisdiction of the CRC, but the CRC, too, failed to discharge its statutory duty by not adjudicating the Appellant's grievance within the prescribed time. Disturbingly, during the pendency of the said complaint, the Procuring Agency proceeded to issue the Work Order dated 16th May 2025 in favor of Respondent No. 4, in clear violation of the bar imposed under BPP Rule 56(4), which prohibits award of contract during the subsistence of a grievance.

20. Compounding this irregularity, the financial bids were opened on 14th May 2025, and the contract was awarded the very second day, the 16th May 2025, in breach of BPP Rule 40, which mandates a minimum duration of three working days between uploading the evaluation report and awarding the contract. Given that Saturday and Sunday (17th and 18th May 2025) were non-working days, the earliest permissible date for issuing the work order would have been Monday, the 19th May 2025. The premature award on 16th May 2025 not only violates the obvious meaning of BPP Rule 40, but also defeats its underlying purpose, which is to allow sufficient time for bidders to initiate their grievances, thereby ensuring transparency and procedural fairness.

21. The Committee further observes that the Respondent No. 2 made inconsistent and factually incorrect representations before this forum regarding the technical scoring, which reflects a lack of due diligence and undermines the credibility of the evaluation process.

22. Collectively, the procedural lapses by the Procurement Committee, the inaction of the CRC, and the premature issuance of the contract have caused a material violation of the Appellant's right to due process and fair treatment under the procurement rules. These irregularities invalidate the integrity of the procurement proceedings and warrant intervention by this Committee.

23. Keeping in view the facts and findings discussed above, this Committee, exercising its powers under BPP Rule 56A(5)(d), hereby declares the carried-out procurement under TSE-242504686513 (Solarization of Existing and New Tube Wells in PB-44 Quetta-VII) to be a case of misprocurement. Consequently, the Work Order dated 16th May 2025 issued in favor

of Respondent No. 4 (M/S Malik Abdul Ghaffar & Brothers) is hereby set aside. The appeal is accordingly accepted with the following directions:

1. The Procuring Agency is directed to re-issue the impugned Tender in accordance with BPP Rule 39(b);
2. The Procuring Agency is further directed to ensure that all future procurements are conducted strictly in compliance with the provisions of the BPP Rules particularly Rules 35, 40 and 56, so as to uphold the principles of fairness, transparency, and merit;
3. In case, the Procuring Agency has made any payment to Respondent No. 4 against the impugned contract, this Committee clarifies, that any such payment made during the pendency of a complaint, and in violation of the Public Procurement Legal Framework was made at the Procuring Agency's own risk and without legal cover.
4. The Procuring Agency shall, in consultation with the relevant administrative department and legal counsel, determine the legal and financial implications of reversing or modifying the contract, and shall report compliance to this Committee within fifteen (15) days of this Order. Nothing in this Order shall preclude disciplinary or administrative action against those responsible for prematurely awarding and operationalizing the contract in violation of statutory provisions.

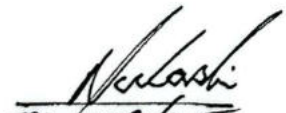
The Registrar of this Committee is directed to communicate the copy of this order to the Appellant, all Respondents, the Complaint Redressal Committee, and the BPPRA for information and necessary compliance.

Announced today, the 2nd day of July 2025, under the seal and authority of the Procurement Review Committee

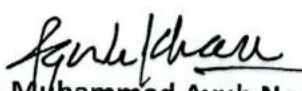
Review Committee

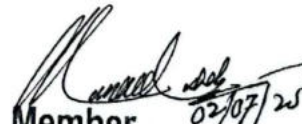

Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

Mr. Muhammad Afzal


02/07/25
Member
Procurement Review Committee
BPPRA

Mr. Mubashir Ali Khan (FCIPS)
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